

December 11, 2013



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 12630
(SEVENTH REVISION)

EXPIRATION DATE: November 30, 2017

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Rockwood Lithium Inc.
(Former Grantee: Chemetall GmbH Gesellschaft)
Kings Mountain, NC
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of lithium alkyls in certain DOT Specification IM 101 portable tanks with a minimum shell thickness less than required in the Hazardous Materials Regulations (HMR). This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101 Hazardous Materials Table, Column 7 Special Provision T21, 172.102(a)(2) and (c)(7)(ii), and 178.270-5(d) in that a DOT Specification IM 101 portable tank with a minimum shell thickness less than that prescribed in Special Provision T21 is not authorized, except as specified herein.

5. BASIS: This special permit is based on the application of Rockwood Lithium Inc. dated November 15, 2013, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Organometallic substance, liquid, pyrophoric, water-reactive (lithium alkyls in hydrocarbon solvents)	4.2	UN3394	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a DOT Specification IM 101 portable tank designed and fabricated as a vessel of sandwich wall construction consisting of a steel inner vessel and insulation plus an outer stainless steel cladding, rather than as a single walled vessel. The portable tank is fully enclosed in a complete ISO framework which has been tested and certified in accordance with the requirements of the International Convention for Safe Containers. Additionally, each portable tank must conform to the following:

(1) Specification - Each tank must conform to DOT Specification IM 101 specification except as specified below:

(i) § 178.270-3 Materials of construction. Each inner vessel must be constructed of T/ESStE 355 steel meeting DIN 17102 (German standard) having a guaranteed minimum tensile strength of 49dN/mm² and a guaranteed minimum elongation of 22%.

(ii) § 178.270-5 Minimum thickness of shells and heads.

(a), (b), (c) * * *

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(d) The shell and head thickness must be equivalent to at least 10.9 mm of the reference steel.

(2) Head and shell construction - the following head and shell construction is authorized:

Material of construction	T/EStE 355 (DIN 17102)
Minimum thickness (actual)	Shell: 10.0 mm Heads: 11.4 mm
Insulation system	Polyurethane insulation of 100 mm minimum thickness covered by a stainless steel jacket of 0.8 mm minimum thickness.

b. TESTING - Each portable tank must be periodically retested and reinspected as specified for DOT Specification IM 101 steel portable tanks.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. Each portable tank must be plainly marked on both sides near the middle, in letters and numerals at least two inches high on a contrasting background, "DOT-SP 12630".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight and cargo vessel.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous

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materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: PTOlson/dl